



CERTAMARIS LEGAL DOCUMENT SYSTEM

Data Processing Agreement

Enterprise DPA for customer personal data processed by CertaMaris.

DOCUMENT ID

CM-LEGAL-10

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

PUBLIC REUSABLE DPA

DOCUMENT OWNER

Privacy / Legal / Security

APPROVER

Authorized CertaMaris Signatory

DOCUMENT PURPOSE / KEY MESSAGE

Provides the processor/controller contractual framework, security obligations, subprocessor controls, incident notification, audit rights, deletion and international-transfer schedules.

EFFECTIVE

Upon incorporation/execution with Customer

CLASSIFICATION

PUBLIC REUSABLE AGREEMENT

LEGAL STATUS

Purpose, Scope and Controlled Use

Enterprise DPA for customer personal data processed by CertaMaris.

This is the controlled v1.0 CertaMaris public legal document. It is based on verified CertaMaris product, security, provider and operating facts available for this release. Customer-specific contracting-entity and execution particulars are intentionally handled in Order Forms or signature blocks rather than invented in a public notice.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Parties, Scope and Roles

This reusable DPA forms part of the Agreement between the Customer identified in the applicable Order Form and the CertaMaris contracting entity identified there. For Customer Personal Data, Customer is controller and CertaMaris is processor, unless Customer is itself a processor, in which case CertaMaris acts as subprocessor. Customer-specific exporter/importer and signature particulars are completed at execution; they are not standing publication fields.

2. Documented Instructions

CertaMaris processes Customer Personal Data only on documented instructions in the Agreement, DPA, Order Form, lawful use of the Services, or additional written instructions accepted by CertaMaris, unless law requires otherwise. CertaMaris will inform Customer of a conflicting instruction when legally permitted.

3. Confidentiality and Personnel

Persons authorized to process Customer Personal Data are subject to confidentiality obligations and access restrictions appropriate to their role. CertaMaris limits access based on need and treats customer cyber posture and technical architecture as high-sensitivity confidential information.

4. Security Measures

CertaMaris maintains safeguards described in Schedule 2, including tenant isolation, role/object-scoped access, authenticated access, TLS, managed encryption at rest, controlled privileged access, audit/change history, logging, separated environments, secure development, vulnerability/dependency management, backups, incident response and controlled subprocessors. Universal MFA/SSO and formal SOC 2/ISO certification are not represented as current.

5. Security Incidents

CertaMaris will notify Customer without undue delay and, for a confirmed Security Incident affecting Customer Personal Data, no later than 48 hours after awareness. Notice may be phased and will include known incident nature, affected systems/data, likely consequences, containment/remediation and a coordination contact. CertaMaris will take reasonable containment, investigation and remediation steps and cooperate with legally required customer notifications.

6. Data Subject and Regulatory Assistance

CertaMaris will provide reasonable assistance with data-subject requests, DPIAs, prior consultation and regulatory inquiries relating to Customer Personal Data, taking into account the nature of processing. Customer remains responsible for determining its legal bases, notices and whether regulator/data-subject notifications are required.

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

7. Subprocessors

Customer generally authorizes the subprocessors in Schedule 3. CertaMaris imposes written data-protection obligations appropriate to their processing and provides 30 days advance notice when reasonably practicable. Customer has 15 days after notice, based on reasonable data-protection grounds to object on reasonable data-protection grounds. The parties will attempt reasonable resolution before terminating the affected processing or feature.

8. International Transfers

Where required, the 2021 EU SCCs are incorporated for the applicable transfer: Module 2 when Customer is controller and CertaMaris processor; Module 3 when Customer is processor and CertaMaris subprocessor. UK transfers use the UK Addendum or another valid mechanism, and Swiss transfers use required adaptations. Transaction-specific annex particulars are completed for the actual customer/transfer.

9. Audits

CertaMaris provides standard security/privacy materials, questionnaires and available evidence under appropriate confidentiality terms. Where law requires and standard materials are insufficient, Customer may request a reasonable audit coordinated to minimize disruption and protect other customers and security-sensitive information.

10. Return and Deletion

Customer may export during the term and ordinarily has 30 days after termination or expiration, unless the Order Form states otherwise. after termination to request a standard export. CertaMaris then removes or renders inaccessible Customer Personal Data from active production systems subject to law, legal hold and dispute preservation. Backup copies age out through managed rotation.

11. Government Requests

Unless prohibited by law, CertaMaris will notify Customer before disclosing Customer Personal Data in response to a binding government request, disclose only data legally required, and challenge overbroad or unlawful demands where reasonably appropriate.

12. Liability and Precedence

Liability under this DPA follows the liability framework in the Agreement unless law requires otherwise. If the DPA conflicts with the Agreement on processing of Customer Personal Data, the DPA controls; an applicable transfer mechanism controls to the extent legally required.

SCHEDULE

Technical and Organizational Measures

Current controls, planned capabilities and explicit non-claims.

CONTROL	STATUS	CURRENT STATEMENT
Tenant isolation	Current	Customer data is logically isolated at database and access-control layers by organization and related operational scope.
Role-based and object-scoped access	Current	Access is scoped by role and object such as organization, fleet or vessel.
Authenticated customer access	Current	The product application requires authenticated sign-in; the marketing website is separate from the authenticated app.
MFA	Planned / enterprise onboarding item	CertaMaris does not make a blanket public production-MFA claim. Options may be implemented by plan and onboarding scope.
SSO / SCIM	Planned enterprise capability	Not represented as universally current.
Encryption in transit	Current	Industry-standard TLS protects traffic in transit.
Encryption at rest	Current	Stored data uses managed encryption-at-rest capabilities of production hosting and database providers.
Privileged production access	Current	Limited to authorized operational personnel; support access is intended to be controlled and time-bounded.

SCHEDULE

Technical and Organizational Measures - Continued

Current controls, planned capabilities and explicit non-claims.

CONTROL	STATUS	CURRENT STATEMENT
Audit history and change trail	Current	Evidence, findings, plans and reviewer actions preserve version and review history rather than silently overwriting prior state.
Operational and access logging	Current	Application and infrastructure logs support operations, security review and incident investigation.
Secure development	Current	Changes use source control, review and separated environments before production.
Vulnerability/dependency management	Configurable/current engineering tooling	Private SBOM and vulnerability tooling is used; no public certification or vulnerability-free guarantee is made.
Environment separation	Current	Development, preview/staging and production are separated; production customer data is excluded from lower environments as a design rule.
Backups	Current	Managed database backups are part of the production model; no public RTO/RPO guarantee is made unless stated in a signed SLA.
Incident response	Current	An internal response process exists; customer notification follows contract/DPA terms.
Formal third-party certification	Not claimed	CertaMaris does not claim SOC 2 or ISO 27001 certification unless and until separately completed and specifically published.

TRANSFER SCHEDULE

International Transfer Framework

Standing mechanism; transaction-specific exporter/importer particulars are completed only when required.

1. EU SCC role selection

Module 2 when Customer is controller and CertaMaris is processor; Module 3 when Customer is processor and CertaMaris is subprocessor.

2. UK

Use the UK Addendum to the EU SCCs or another then-valid UK transfer mechanism where required.

3. Switzerland

Use required Swiss FDPA adaptations to the chosen mechanism where applicable.

4. Supplementary measures

Encryption, access minimization, tenant isolation, provider contractual commitments, region selection, and data-classification restrictions including no external AI for RESTRICTED data.

5. Transfer-risk assessment

Maintained as a controlled record for the actual transfer and reviewed when providers, jurisdictions or material technical measures change.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	PUBLIC REUSABLE DPA
Effective	Upon incorporation/execution with Customer
Document owner	Privacy / Legal / Security
Approver / execution authority	Authorized CertaMaris Signatory
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____